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Law – 540: Intellectual Property Rights - I (Paper – V) 5th Semester (Syllabus)

Unit – I

1. Intellectual Property Rights Jurisprudence:

- (i) Tangible and Intangible things, Right over things
- (ii) Property, Kinds of Property: Corporeal and Incorporeal; Theories of Property; Occupation, Utilitarian, Functional, Social Trust and Socialist theories.
- (iii) Industrial property
- (iv) Intellectual Property Rights: Definition and Nature
- (v) Various kinds of IPR, Need for and Scope of Protection of IPR
- (vi) Ownership and IPR
- (vii) Morality and Public Order and IPR
- (viii) Environment and IPR
- (ix) Cultural Property and IPR
- (x) Traditional knowledge and IPR

Unit – II

1. Patents Act, 1970

- (i) History and scope
- (ii) Definition and Kinds of Patents, Justifications for Patent Protection
- (iii) Criteria of Patentability: Inventiveness, Non-obviousness, and Utility (Capability of industrial application)
- (iv) Process for grant of Patent and Registration thereof: Application, Complete specification, Examination, Publication, Opposition and Grant.
- (v) Subject matter of patents
- (vi) Exploitation of Patents, Renewal and Revocation of Patents, Dependant Patents, Secret Patents and Patents of Addition.
- (vii) Rights of Patent Owner, Compulsory Licenses, Government use of Patents
- (viii) Violation of Patent Rights, and Remedies available to Patent Owner
- (ix) Biotechnological inventions and Patents

Unit – III

1. Trade Marks Act 1999

- (i) History and scope of Trade Marks
- (ii) Definition and Functions of a Trade Mark, Trade Names
- (iii) Criteria of Registration of a Trade Mark, Rights of Trade Mark Owner
- (iv) Infringement of Trade Marks and Remedies available to Trade Mark Owner
- (v) Intellectual Property Appellate Board
- (vi) Well Known Marks and their protection
- (vii) Passing Off
- (viii) Domain Names and their administration

Unit – IV

1. Industrial Designs Act, 2000

- (i) Brief History of Industrial Designs Law
- (ii) Industrial Designs as IPR
- (iii) Industrial Designs: Definition and Criteria of Registration
- (iv) Acquisition and exploitation of Design Rights
- (v) Infringement of Design Rights: Defences and Remedies

UNIT – I

1. INTELLECTUAL PROPERTY RIGHTS JURISPRUDENCE

Introduction

The concept of **property** is one of the most important concepts in jurisprudence. Traditionally, property was associated with physical objects such as land, houses, animals and goods. With the development of science, technology, literature, art and industry, the law gradually recognized that valuable creations of the human mind also require legal protection.

A book written by an author, an invention made by a scientist, a painting created by an artist, a symbol identifying a business or the design of a product may not always be tangible in the ordinary sense, but they have economic and legal value. Such creations are generally protected through the system of **Intellectual Property Rights (IPR)**.

Thus, Intellectual Property Rights represent a special branch of property law dealing with rights over the **creations of the human intellect**.

❖ TANGIBLE AND INTANGIBLE THINGS AND RIGHTS OVER THINGS

Meaning of Things

In jurisprudence, the term “**thing**” is used in a broad sense. A thing may be an object over which a person can exercise a legally recognized right.

Things may broadly be divided into:

1. **Tangible things**, and
2. **Intangible things**.

1. Tangible Things

Tangible things are things having a physical existence and which can generally be seen, touched or physically possessed.

Examples

- Land;
- House;
- Vehicle;
- Furniture;
- Books;
- Machinery;
- Goods and other movable property.

Rights over tangible things are generally protected through the ordinary law of property.

For example, a person may have:

- Ownership;
- Possession;
- Right of enjoyment;
- Right to transfer;
- Right to exclude others; or

- Other legally recognized interests in property.

2. Intangible Things

Intangible things do not have an independent physical form. They cannot ordinarily be touched or physically possessed, but they may have considerable economic and legal value.

Examples

- Copyright;
- Patent rights;
- Trademark rights;
- Goodwill;
- Trade secrets;
- Rights arising under contracts;
- Debts and other actionable claims.

Intellectual property is generally classified as **intangible property**.

For example, the physical paper on which a novel is printed is tangible property. However, the literary work contained in the book is an intangible intellectual creation protected separately by copyright law.

Therefore, the ownership of a physical object and the ownership of intellectual property contained in that object may belong to different persons.

Example

A person may purchase a book and become the owner of that particular physical copy. However, the purchaser does not automatically acquire the right to reproduce, publish or commercially distribute the literary work.

This distinction is fundamental to the understanding of Intellectual Property Rights.

RIGHTS OVER THINGS

A **right over a thing** means a legally recognized interest or authority that a person possesses in relation to property.

The most complete form of right over property is **ownership**.

Ownership generally includes certain legal powers such as:

- The right to possess;
- The right to use and enjoy;
- The right to exclude others;
- The right to transfer or dispose of the property; and
- The right to take legal action against unlawful interference.

However, ownership is not absolute. It is subject to restrictions imposed by law and the rights of other persons.

Different persons may also have different rights in relation to the same property.

For example:

- One person may own a house;
- Another person may lawfully possess it as a tenant;
- A bank may have a security interest over it.

Therefore, property law recognizes a number of different interests and rights over things.

❖ (ii) PROPERTY: MEANING AND KINDS OF PROPERTY

Meaning of Property

The term **property** is used in different senses.

In a narrow sense, it refers to the object over which a person has ownership.

In a wider legal sense, property refers to the **bundle of legally recognized rights and interests** which a person has in relation to a thing.

Thus, property is not merely the physical object itself. It also includes the legal relationship between a person and that object.

The right of property generally gives the owner legal protection against unauthorized interference by others.

KINDS OF PROPERTY

Property may be classified in several ways. One important classification is:

1. **Corporeal Property**, and
2. **Incorporeal Property**.

A. Corporeal Property

Corporeal property means property having a physical or material existence.

It can generally be perceived through the senses.

Examples

- Land;
- Buildings;
- Vehicles;
- Machinery;
- Jewellery;
- Goods.

Corporeal property may further include movable and immovable property.

B. Incorporeal Property

Incorporeal property consists of rights that do not have physical existence but are recognized and protected by law.

Examples

- Copyright;
- Patents;
- Trademarks;
- Goodwill;
- Easements;
- Debts;
- Intellectual property rights.

Therefore, **Intellectual Property** is an important form of incorporeal property.

The value of incorporeal property may sometimes be much greater than the value of physical property. For example, the value of a famous trademark or patented technology may be extremely high.

THEORIES OF PROPERTY

Various jurists and philosophers have explained the origin and justification of property through different theories.

The important theories include:

1. Occupation Theory;
2. Utilitarian Theory;
3. Functional Theory;
4. Social Trust Theory; and
5. Socialist Theory.

1. OCCUPATION THEORY

The **Occupation Theory** is one of the oldest theories of property.

According to this theory, property originates when a person takes possession or occupation of a thing that previously belonged to no one.

The basic principle is:

The first person to take possession of a thing becomes its owner.

This theory is particularly associated with the idea that occupation creates a title over ownerless property.

Example

If a person lawfully takes possession of an abandoned or ownerless object with the intention of making it his own, occupation may create a claim to ownership, subject to legal rules.

Criticism

The theory is limited because mere possession cannot explain all forms of modern property.

For example, intellectual property cannot simply be explained by physical occupation because ideas and creations of the mind are intangible.

However, the idea of **first creation or first acquisition** has some relevance in the field of intellectual property.

2. UTILITARIAN THEORY

The **Utilitarian Theory** is mainly associated with **Jeremy Bentham**.

According to this theory, the law of property should promote the **greatest happiness of the greatest number**.

Property rights are justified because they encourage:

- Industry;
- Labour;
- Investment;
- Innovation;
- Economic development; and
- Efficient use of resources.

A person is more likely to invest time, money and effort in creating something if the law provides protection against unauthorized use by others.

Relevance to Intellectual Property

The utilitarian theory provides an important justification for IPR.

For example, patent protection may encourage inventors to invest in research and development because they receive a limited exclusive right over their invention.

Similarly, copyright protection provides an economic incentive to authors, artists and creators.

Thus, IPR seeks to strike a balance between:

- Providing incentives to creators; and
- Ensuring that society ultimately benefits from knowledge and innovation.

3. FUNCTIONAL THEORY

According to the **Functional Theory**, property should be understood in terms of the **function or purpose** it performs in society.

Property is not merely an absolute individual right. It performs important social and economic functions.

The law therefore regulates property rights according to the needs of society.

Main Idea

The owner may have important rights over property, but the use of property should also be consistent with legal and social interests.

Relevance to IPR

Intellectual property law performs several functions, including:

- Encouraging creativity;
- Promoting innovation;
- Protecting consumers;
- Encouraging investment;
- Facilitating trade and commerce; and
- Disseminating knowledge.

Therefore, intellectual property rights are granted not only for the benefit of the creator but also to serve wider economic and social objectives.

4. SOCIAL TRUST THEORY

The **Social Trust Theory** considers property as having a **social obligation**.

According to this approach, property is not merely held for the exclusive benefit of the owner. The owner is expected to exercise property rights in a manner that is consistent with the welfare of society.

The concept is sometimes explained by stating that:

Property has a social function.

This theory does not necessarily deny private property, but it emphasizes that property rights may be subject to reasonable regulation in the public interest.

Relevance to Intellectual Property

Intellectual property rights are not absolute or unlimited.

For example:

- Patents are granted only for a limited period;
- Copyright protection is also limited in duration;
- Certain uses may be permitted through statutory exceptions and limitations;
- Compulsory licensing may be available in specified circumstances;
- Protection may be restricted in the public interest.

Thus, the law attempts to balance the rights of the intellectual property holder with the interests of society.

5. SOCIALIST THEORY

The **Socialist Theory of Property** developed in opposition to the concept of unrestricted private ownership of the means of production.

According to socialist thought, important resources should primarily serve the interests of society rather than allowing excessive concentration of wealth and economic power in private hands.

This theory emphasizes:

- Social ownership;
- Economic equality;
- Collective welfare; and
- Regulation of private property.

Relevance to Intellectual Property

The socialist approach raises important questions regarding the extent to which knowledge, technology and other intellectual creations should remain under exclusive private control.

Modern intellectual property law does not generally follow a purely socialist model. However, the idea of balancing private rights with public welfare is important.

For example, intellectual property law may provide mechanisms that protect public interest, particularly in areas such as:

- Medicines and public health;
- Education;
- Technology;
- Access to knowledge; and
- Essential inventions.

Thus, modern IPR law represents a balance between **private ownership and social interest**.

❖ (iii) INDUSTRIAL PROPERTY

Meaning

Industrial Property is a major branch of Intellectual Property Rights. It generally relates to intellectual creations and commercial identifiers used in industry and trade.

The expression does not refer only to factories or industrial products. It has a wider meaning and covers rights connected with industrial, commercial and business activities.

Important forms of industrial property include:

- Patents;
- Trademarks;
- Industrial designs;
- Geographical indications;
- Trade names;
- Protection against unfair competition; and
- Other industrial and commercial intellectual rights.

1. Patents

A **patent** protects an invention that satisfies the legal requirements for patentability.

It gives the patent holder exclusive rights for a limited period, subject to the conditions and limitations prescribed by law.

The basic purpose of patent law is to encourage innovation and technological development.

2. Trademarks

A **trademark** is a mark capable of distinguishing the goods or services of one person from those of others.

It may include, according to the legal requirements:

- Words;
- Names;
- Symbols;
- Labels;
- Devices; and
- Other distinctive marks.

The primary purpose of trademark protection is to identify the commercial source of goods or services and prevent consumer confusion.

3. Industrial Designs

Industrial design protection relates primarily to the visual or aesthetic features of an article.

The law protects the external appearance or design of a product, subject to statutory requirements.

4. Geographical Indications

A **Geographical Indication (GI)** identifies goods as originating from a particular territory, region or locality where a particular quality, reputation or characteristic of the goods is essentially attributable to that geographical origin.

❖ (iv) INTELLECTUAL PROPERTY RIGHTS: DEFINITION AND NATURE

Definition

Intellectual Property Rights are legal rights granted in respect of creations of the human intellect.

These rights protect intellectual creations such as:

- Literary works;
- Artistic works;
- Musical works;

- Inventions;
- Designs;
- Trademarks;
- Geographical indications; and
- Other forms of intellectual creation recognized by law.

In simple words:

IPR protects the products of the human mind and gives the creator or right-holder certain exclusive legal rights over their use.

The protection is not unlimited. It is subject to statutory conditions, limitations and, in most cases, a prescribed duration.

NATURE OF INTELLECTUAL PROPERTY RIGHTS

1. Intangible Property

IPR is a form of **intangible or incorporeal property**.

The intellectual creation may be expressed through a physical object, but the intellectual property itself is distinct from that object.

2. Exclusive Rights

IPR generally grants exclusive rights to the creator or right-holder.

For example, depending on the particular form of IPR, the right-holder may have the right to:

- Reproduce;
- Manufacture;
- Sell;
- License;
- Assign;
- Communicate;
- Use commercially; or
- Prevent unauthorized use.

3. Statutory Nature

Most intellectual property rights exist and operate according to specific statutes.

The nature, scope, duration and remedies of each right are determined by the relevant law.

4. Territorial Nature

Intellectual property rights are generally **territorial** in nature.

Protection in one country does not automatically mean identical protection in every other country. International treaties and conventions, however, facilitate recognition and protection across different jurisdictions.

5. Limited Duration

Many forms of IPR are granted for a limited period.

For example, patent protection is limited in duration. Copyright protection also lasts only for the period prescribed by law.

After the expiry of protection, the work or invention may become available for public use according to the applicable law.

However, some rights, particularly trademark rights, may continue through renewal as permitted by law.

6. Transferable and Commercially Valuable

Intellectual property rights can generally have commercial value.

Depending upon the applicable law, they may be:

- Assigned;
- Licensed;
- Transmitted; or
- Used as valuable business assets.

Therefore, IPR plays an important role in modern business and commercial transactions.

❖ (v) VARIOUS KINDS OF IPR, NEED FOR AND SCOPE OF PROTECTION OF IPR

Meaning of Intellectual Property Rights

Intellectual Property Rights (IPR) are legal rights granted to persons over creations of their intellect. These rights enable the creator or owner to control, use, exploit and, in appropriate cases, prevent unauthorized use of the protected intellectual property.

Intellectual property differs from ordinary tangible property because its subject matter is generally **intangible**. A person may own a physical object containing an intellectual creation without becoming the owner of the intellectual property itself.

For example, a person purchasing a book becomes the owner of that physical copy, but does not automatically obtain the copyright to reproduce or publish the book.

Various Kinds of Intellectual Property Rights

The major forms of IPR are as follows:

1. Copyright

Copyright protects original literary, dramatic, musical and artistic works, as well as certain other subject matter recognized by law.

It generally gives the owner exclusive rights relating to acts such as reproduction, communication, adaptation and distribution, subject to statutory limitations and exceptions.

Copyright protects the **expression of an idea and not the idea itself**.

2. Patent

A **patent** is granted for an invention satisfying the legal requirements of patentability.

Patent law generally requires that an invention must satisfy conditions such as:

- Novelty;
- Inventive step; and
- Industrial applicability.

A patent gives the patentee exclusive rights for a limited statutory period, subject to the provisions of the law.

Patent protection is especially important in the fields of science, technology, engineering and pharmaceuticals.

3. Trademark

A **trademark** is a distinctive mark used to distinguish the goods or services of one person or enterprise from those of another.

A trademark may include words, names, symbols, devices, labels or other distinctive signs recognized under law.

The main functions of a trademark are:

- Identification of commercial source;
- Distinguishing goods or services;
- Protection of goodwill; and
- Prevention of consumer confusion.

4. Industrial Designs

Industrial design protection relates to the visual or aesthetic appearance of an article.

It may protect features such as:

- Shape;
- Configuration;
- Pattern;
- Ornament; or
- Composition of lines or colours,

subject to the requirements of the relevant law.

The purpose is to protect the visual appearance of a product rather than its technical or functional invention.

5. Geographical Indications

A **Geographical Indication (GI)** identifies goods as originating from a particular territory, region or locality where a particular quality, reputation or characteristic is essentially attributable to that geographical origin.

GI protection is generally associated with products having a special connection with a particular geographical area.

6. Trade Secrets and Confidential Information

Trade secrets consist of commercially valuable information that is kept confidential.

Examples include:

- Manufacturing processes;
- Formulas;
- Technical know-how;
- Business methods;
- Customer information; and
- Confidential commercial strategies.

The value of a trade secret generally depends upon its secrecy. Unlike certain registered intellectual property rights, protection of confidential information often depends upon the circumstances, contractual obligations and principles of equity and confidentiality.

7. Plant Varieties

Special protection may be available for new plant varieties and the rights of plant breeders.

Such protection attempts to encourage agricultural innovation while also recognizing the importance of farmers' rights and public interest.

8. Other Intellectual Property Rights

Modern intellectual property law may also extend to areas such as:

- Layout-designs of semiconductor integrated circuits;
- Performers' rights;
- Broadcasting rights;
- Trade names;
- Domain names and related commercial identifiers; and
- Other forms of intellectual creations protected under national or international law.

Need for Protection of IPR

The protection of intellectual property is necessary for several reasons.

1. Encouragement of Creativity and Innovation

Creators and inventors often invest considerable:

- Time;
- Labour;
- Skill;
- Knowledge; and
- Financial resources.

If others could freely copy and commercially exploit their creations immediately, creators may have less incentive to innovate.

IPR therefore provides an incentive for creativity and innovation.

2. Reward for Intellectual Labour

The creator of a literary work, invention, artistic work or commercial identity is given legal recognition and, in many cases, economic rights over that creation.

Thus, IPR recognizes intellectual labour as having economic and legal value.

3. Prevention of Unauthorized Exploitation

Without legal protection, competitors may copy inventions, literary works, artistic works, brands or designs without authorization.

IPR gives the right-holder legal remedies against infringement and unauthorized use.

4. Promotion of Economic Development

Intellectual property has become an important part of the modern economy.

Patents promote technological development, trademarks encourage business goodwill, and copyright supports creative industries.

IPR can therefore encourage:

- Investment;
- Research and development;

- Technology transfer;
- Industrial growth; and
- Commercial expansion.

5. Protection of Consumers

Trademark law and geographical indication protection help consumers identify the origin and characteristics of goods and services.

They reduce the possibility of:

- Deception;
- Passing off;
- Counterfeiting; and
- Consumer confusion.

Scope of Protection of IPR

The scope of IPR is very wide and covers almost every important area of intellectual and commercial activity.

It extends to:

- Literature and publishing;
- Music and entertainment;
- Art and culture;
- Scientific inventions;
- Software and digital technology;
- Pharmaceutical products;
- Industrial products and designs;
- Brands and commercial identities;
- Agriculture and plant varieties;
- Traditional knowledge; and
- Geographically associated products.

With the growth of the digital economy, intellectual property has become increasingly important in relation to:

- Computer programs;
- Digital content;
- Online platforms;
- Artificial intelligence-related innovation;
- Databases and technology; and
- Electronic commerce.

However, IPR protection is not absolute. It is subject to:

- Statutory conditions;
- Limited duration in many cases;

- Exceptions and limitations;
- Public interest; and
- Principles relating to morality, public order, health and welfare.

❖ (vi) OWNERSHIP AND IPR

Meaning of Ownership

Ownership refers to the legal relationship between a person and property through which that person obtains legally recognized rights of control, use, enjoyment and, subject to law, transfer.

In intellectual property law, ownership means the legal entitlement to the intellectual property right.

The owner is generally entitled to exploit the intellectual property and prevent unauthorized use by others, subject to the provisions of the relevant statute.

Ownership of Tangible Property and Intellectual Property

Ownership of a physical object and ownership of intellectual property contained in that object are different.

Example

If A purchases a painting from an artist:

- A may become the owner of the physical painting;
- The artist may continue to own the copyright in the artistic work.

Therefore, ownership of the material object does not automatically transfer the intellectual property rights.

Ownership in Copyright

Under copyright law, the **author is generally the first owner of copyright**, subject to statutory exceptions.

The law recognizes special rules in cases such as:

- Employment;
- Works created under contracts;
- Government works;
- Public undertakings; and
- Other situations specifically provided by law.

Copyright may also be transferred by **assignment** or made available to others through a **licence**.

Ownership in Patent

The right to apply for and obtain a patent generally belongs to:

- The true and first inventor;
- The assignee of the inventor; or
- The legal representative of a deceased person entitled to apply.

Patent rights may be assigned, licensed or otherwise commercially exploited according to law.

Ownership in Trademark

Trademark rights may arise through use and/or registration according to the applicable legal system.

The registered proprietor receives statutory rights, while even an unregistered trademark may receive protection against **passing off** where the necessary requirements are established.

Trademark ownership is closely connected with:

- Use;
- Goodwill;
- Reputation; and
- Distinctiveness.

Transfer of Intellectual Property

Intellectual property rights are valuable commercial assets and may generally be dealt with through:

1. Assignment

An assignment involves the transfer of ownership from one person to another.

2. Licence

A licence permits another person to use the intellectual property without transferring complete ownership.

3. Succession or Transmission

IP rights may also pass according to law through succession, inheritance or other legal transmission.

Importance of Ownership

Determining ownership is important because the owner generally has the right to:

- Use and exploit the intellectual property;
- Grant licences;
- Assign rights;
- Receive economic benefits; and
- Take legal action against infringement.

Disputes frequently arise regarding ownership where intellectual property is created by:

- Employees;
- Partners;
- Joint authors;
- Researchers;
- Contractors; or
- Persons working under commercial agreements.

Therefore, clear contractual arrangements regarding ownership are extremely important.

❖ (vii) MORALITY, PUBLIC ORDER AND IPR

Introduction

Intellectual property rights are private rights, but their creation and enforcement may be restricted by considerations of **morality and public order**.

The law does not provide protection without limits. In certain circumstances, an intellectual creation or invention may be denied protection if its commercial exploitation is contrary to public order or morality.

Public Order

Public order refers broadly to the protection of fundamental interests of society, public safety and the proper functioning of the legal and social system.

A State may restrict intellectual property protection where recognition or exploitation would seriously affect public interests.

Morality

Morality refers to accepted ethical standards and principles of society, although its exact meaning may vary according to social and legal context.

The concept of morality in IPR does not mean that every controversial work or invention is automatically denied protection. Restrictions must operate according to the relevant statutory and legal framework.

Morality and Patent Law

Patent law recognizes that certain inventions may be excluded from patentability where their commercial exploitation would be contrary to:

- Public order;
- Morality; or
- Other specifically protected public interests.

The Indian patent system also contains statutory exclusions from patentability.

The basic purpose of such exclusions is to ensure that the grant of a private monopoly does not conflict with fundamental social and legal interests.

Morality and Trademark Law

Trademark registration may be refused where the mark:

- Is prohibited by law;
- Contains scandalous or obscene matter;
- Is likely to offend religious susceptibilities of a class or section of citizens; or
- Is otherwise subject to statutory grounds for refusal.

Therefore, the right to obtain exclusive trademark protection is subject to legal restrictions based upon public interest and accepted standards.

Morality and Copyright

Copyright law primarily protects original expression and does not generally operate as a complete system of moral censorship.

However, the use, publication or distribution of certain material may be subject to other laws relating to:

- Obscenity;
- Public order;
- Decency; or
- Other legal restrictions.

Therefore, the existence of copyright does not necessarily make every use or publication legally permissible.

Balance Between IPR and Public Interest

The law must balance:

1. The interests of creators and right-holders; and
2. The interests of society.

The purpose of morality and public order restrictions is to ensure that intellectual property protection does not operate independently of wider legal and social concerns.

❖ (viii) ENVIRONMENT AND IPR

Introduction

The relationship between **environment and intellectual property rights** has become increasingly important because technological innovation, agriculture, biotechnology and industrial development directly affect environmental protection.

IPR can encourage the development of environmentally beneficial technologies while environmental law and public interest considerations may limit certain forms of commercial exploitation.

IPR as an Incentive for Green Innovation

Patent protection can encourage research and development in environmentally useful technologies, such as:

- Renewable energy;
- Solar and wind technology;
- Waste management;
- Pollution control;
- Water conservation;
- Sustainable agriculture; and
- Energy-efficient technology.

The grant of intellectual property rights may encourage inventors and companies to invest in environmentally beneficial research.

Biotechnology and Environmental Concerns

Biotechnology creates important questions regarding:

- Genetic resources;
- Biodiversity;
- Plant varieties;
- Genetic modification; and
- Access to biological materials.

The commercial use of biological resources may create conflict between private intellectual property claims and the need to conserve biodiversity.

Biodiversity and Intellectual Property

The protection of biological diversity is closely related to intellectual property law.

Concerns may arise where companies or researchers obtain intellectual property protection based upon biological resources or traditional knowledge originating in a particular country or community.

This has led to discussions concerning:

- Access to genetic resources;
- Benefit-sharing;
- Protection of biodiversity; and
- Prevention of misappropriation.

Sustainable Development and IPR

The principle of **sustainable development** requires a balance between economic development and environmental protection.

Similarly, intellectual property law must balance:

- Incentives for technological development; and
- Wider public interests relating to environmental protection.

Thus, IPR can become an important tool for promoting environmentally sustainable innovation.

❖ (ix) CULTURAL PROPERTY AND IPR

Meaning of Cultural Property

Cultural property refers broadly to objects, expressions, knowledge, traditions and other elements having cultural, historical, artistic or social importance.

It may include:

- Traditional art;
- Folk music;
- Traditional designs;
- Cultural symbols;
- Manuscripts;
- Historical objects;
- Indigenous cultural expressions; and
- Community heritage.

Relationship Between Cultural Property and IPR

Traditional intellectual property systems were primarily designed to protect identifiable individual creators or owners.

However, cultural property is often:

- Created collectively;
- Developed over generations;
- Transmitted orally;
- Connected with a community rather than an individual; and
- Not limited to a specific period of creation.

This creates difficulties in applying ordinary IPR principles to cultural property.

Problems of Protection

Traditional copyright law may require:

- Identification of an author;

- Originality; and
- A limited duration of protection.

These requirements may not always suit traditional cultural expressions because such expressions may belong collectively to a community and may have existed for generations.

Similarly, trademarks and patents may not adequately protect every aspect of cultural heritage.

Misappropriation of Cultural Expressions

A major concern is the unauthorized commercial use of cultural expressions by persons or companies having no connection with the community that developed them.

Examples may include unauthorized use of:

- Traditional symbols;
- Indigenous designs;
- Folk art;
- Cultural names; or
- Traditional artistic expressions.

Such use may result in commercial benefit to outsiders while the original community receives no recognition or benefit.

Need for Protection

Protection of cultural property is necessary to:

- Preserve cultural identity;
- Prevent unauthorized commercial exploitation;
- Recognize community interests;
- Promote cultural diversity; and
- Ensure fair and respectful use of cultural heritage.

Therefore, the modern approach increasingly recognizes that conventional IPR systems may need to be supplemented by special mechanisms for protecting cultural expressions and heritage.

❖ (x) TRADITIONAL KNOWLEDGE AND IPR

Meaning of Traditional Knowledge

Traditional Knowledge (TK) refers to knowledge, skills, practices and innovations developed, preserved and transmitted by indigenous or local communities from generation to generation.

Traditional knowledge may relate to:

- Medicines;
- Agriculture;
- Food;
- Biodiversity;
- Environmental management;
- Traditional healing;
- Biological resources; and

- Cultural practices.

Unlike many modern inventions, traditional knowledge is often:

- Collective in nature;
- Developed over a long period;
- Passed from generation to generation; and
- Closely connected with the customs and culture of a community.

Traditional Knowledge and the Problem of Misappropriation

A major problem arises when traditional knowledge is used by outsiders for commercial purposes without:

- Permission;
- Recognition; or
- Fair sharing of benefits.

This unauthorized appropriation is often described as **misappropriation**, and in certain contexts as **biopiracy**, particularly where biological resources and associated knowledge are commercially exploited without proper authorization or benefit-sharing.

Limitations of Conventional IPR

Traditional forms of IPR may not always adequately protect traditional knowledge.

For example, patent law generally requires:

- Novelty;
- Inventive step; and
- Industrial applicability.

Traditional knowledge that has existed for generations may not satisfy the requirement of novelty, even though it may have significant value.

Similarly, copyright law is generally based upon identifiable authorship and originality, whereas traditional knowledge may belong collectively to an entire community.

Therefore, conventional IPR systems may not always provide complete protection.

Protection of Traditional Knowledge

Traditional knowledge may be protected through different approaches, including:

1. Defensive Protection

Defensive protection aims to prevent others from wrongly obtaining intellectual property rights over existing traditional knowledge.

Documentation and databases can help patent authorities identify existing knowledge and prevent the grant of patents for inventions that lack novelty.

2. Positive Protection

Positive protection seeks to provide communities with legally recognized rights over their traditional knowledge and enable them to control or benefit from its use.

3. Access and Benefit-Sharing

Where biological resources and traditional knowledge are commercially utilized, an important principle is that benefits should be shared fairly and equitably with the concerned communities or providers, according to the applicable legal framework.

Traditional Knowledge Protection in India

India has taken important steps to protect traditional knowledge from wrongful patent claims.

One significant mechanism is the **Traditional Knowledge Digital Library (TKDL)**, which documents traditional medicinal knowledge in a form that can assist patent examination and help prevent the grant of patents over knowledge that is already known.

Traditional knowledge protection in India is also connected with laws and policies relating to:

- Biological diversity;
- Protection of plant varieties and farmers' interests;
- Patent law; and
- Conservation and sustainable use of biological resources.

IMPORTANT CASE STUDIES RELATING TO TRADITIONAL KNOWLEDGE

1. Turmeric Case

The turmeric patent controversy became an important example in discussions concerning traditional knowledge.

A patent relating to the use of turmeric for wound healing was granted in the United States. The grant was challenged on the ground that the relevant use was already known in traditional Indian knowledge.

The patent was subsequently revoked after evidence of prior knowledge was produced.

Importance

The case demonstrated the importance of documenting traditional knowledge and making it available as prior art to prevent wrongful patent claims.

2. Neem Case

The neem controversy also became an important example of concerns relating to traditional knowledge and biological resources.

Traditional uses of neem had been known in India for a long period. A European patent concerning certain neem-based products was challenged on grounds including lack of novelty based upon existing traditional knowledge.

The dispute became internationally significant as an example of the conflict between modern intellectual property claims and traditional knowledge.

CONCLUSION

Intellectual Property Rights protect the creations of the human intellect and include rights such as **copyright, patents, trademarks, industrial designs and geographical indications**. The protection of these rights encourages creativity, innovation, investment and economic development.

However, IPR does not operate in isolation. Its development and enforcement are closely connected with broader issues of **ownership, morality, public order, environmental protection, cultural heritage and traditional knowledge**.

Modern intellectual property jurisprudence therefore seeks to maintain a balance between the private interests of creators and right-holders and wider public interests. This balance is particularly important in relation to environmental protection, cultural expressions and traditional knowledge, where individual ownership models may not always adequately protect collective or community interests.

1. THE PATENTS ACT, 1970

A **patent** is one of the most important forms of Intellectual Property Rights. It protects inventions and gives the patentee an exclusive statutory right to exploit the invention for a limited period, subject to the conditions and limitations prescribed by law.

The law relating to patents in India is mainly governed by the **Patents Act, 1970**, together with the **Patents Rules, 2003**, as amended from time to time. The Act has undergone important amendments, particularly in **1999, 2002 and 2005**, to bring Indian patent law into conformity with international obligations, especially the **TRIPS Agreement**. The current official text incorporates subsequent statutory changes as well.

The patent system seeks to maintain a balance between two important objectives:

1. Providing incentives to inventors and innovators; and
2. Protecting public interest by ensuring that patent rights do not become an unlimited monopoly.

❖ (i) HISTORY AND SCOPE OF THE PATENTS ACT, 1970

Historical Development of Patent Law in India

The history of patent law in India can be traced to the colonial period.

The **Act VI of 1856**, known as the Act for Protection of Inventions, was one of the earliest enactments relating to patent protection in India. This was followed by further legislation and amendments.

Important developments included:

- The **Inventions and Designs Act, 1888**;
- The **Indian Patents and Designs Act, 1911**;
- The **Patents Act, 1970**; and
- Major amendments in **1999, 2002 and 2005**.

The Patents Act, 1970

The Patents Act, 1970 was enacted to establish a modern and independent patent system suitable for India's economic and technological needs.

The Act came into force in **1972** and replaced the patent provisions of the earlier 1911 legislation.

The original approach of Indian patent law was strongly influenced by public interest concerns, particularly regarding:

- Access to essential products;
- Prevention of abuse of patent monopolies;
- Development of domestic industry; and
- Technological growth.

Important Amendments

1. Patents (Amendment) Act, 1999

This amendment was an important step towards compliance with India's obligations under the **TRIPS Agreement**.

It introduced, among other changes, the **mailbox system** for certain pharmaceutical and agricultural chemical product patent applications and provisions relating to Exclusive Marketing Rights.

2. Patents (Amendment) Act, 2002

The 2002 amendment introduced significant changes in Indian patent law.

Important developments included:

- Expansion of the definition of invention;
- Changes relating to the term of patents;
- Introduction of publication of patent applications;
- Changes in opposition procedures; and
- Other reforms relating to the administration of patents.

3. Patents (Amendment) Act, 2005

The 2005 amendment was particularly significant because it completed India's transition to a **product patent regime** in areas such as pharmaceuticals and chemicals.

It also retained important safeguards relating to:

- Public interest;
- Compulsory licensing;
- Patentability standards; and
- Prevention of unjustified extension of patent monopolies.

Scope of the Patents Act

The Patents Act deals with:

- Patentable inventions;
- Non-patentable subject matter;
- Persons entitled to apply;
- Patent applications;
- Specifications;
- Publication and examination;
- Opposition proceedings;
- Grant of patents;
- Rights and obligations of patentees;
- Patents of addition;
- Compulsory licences;
- Government use;
- Revocation;
- Infringement; and
- Remedies.

The structure of the Act shows that patent protection is not absolute. The Act contains several safeguards to balance private patent rights with public welfare. The official statutory structure covers applications, examination, opposition, grant, patents of addition, compulsory licensing, government use and infringement remedies.

❖ (ii) DEFINITION AND KINDS OF PATENTS AND JUSTIFICATIONS FOR PATENT PROTECTION

A patent may be described as a statutory and exclusive right granted to an inventor or other eligible person in respect of an invention.

Under the Patents Act, an invention must generally relate to a **new product or process** involving an **inventive step** and capable of **industrial application**, subject to the exclusions contained in the Act.

The patent does not give the inventor ownership over an abstract idea. It gives legally enforceable rights over an invention satisfying the requirements of patent law.

Important Characteristics of a Patent

A patent is generally:

1. An Exclusive Right

The patentee can prevent others from making, using, offering for sale, selling or importing the patented invention without authorization, subject to statutory provisions.

2. Territorial

A patent granted in India operates within India. Patent rights are generally territorial in nature.

3. Limited in Duration

A patent is not perpetual. Under the present law, the normal term is **20 years from the date of filing**, subject to the statutory provisions applicable to international applications and payment of renewal fees.

4. A Statutory Right

Patent rights exist because the law grants them. Their scope and enforcement are governed by the Patents Act.

Kinds of Patents

Although the Indian statute does not create completely separate categories of ordinary “product patents” and “process patents” as independent legal regimes, patents may broadly be understood as follows:

1. Product Patent

A product patent protects a qualifying product or substance.

The patent holder may prevent unauthorized persons from making, using, selling, offering for sale or importing the patented product, subject to the provisions of the Act.

2. Process Patent

A process patent protects a qualifying method or process of manufacturing or producing something.

The patentee may prevent unauthorized use of the patented process and, subject to the law, dealings with products directly obtained through that process.

3. Patents of Addition

A patent of addition is granted for an improvement or modification of an invention for which the applicant already holds or has applied for a main patent.

These are governed principally by **Sections 54–56** of the Patents Act.

4. Secret Patents

The expression “secret patent” is generally used in relation to inventions where publication or disclosure may affect national security or other protected governmental interests.

The Act contains provisions enabling secrecy directions in appropriate cases relating to inventions relevant to defence or security.

5. Dependent or Related Patents

A dependent patent generally refers to a later invention that depends upon or is technologically connected with an earlier patented invention. In practice, the exploitation of one invention may require the use of another patented invention.

Indian law addresses certain situations involving related patents through provisions such as licensing of related patents and patents of addition.

JUSTIFICATIONS FOR PATENT PROTECTION

Patent protection is justified on several grounds.

1. Incentive Theory

Research and innovation often require substantial investment of:

- Time;
- Labour;
- Technical knowledge; and
- Financial resources.

Patent protection gives inventors a temporary exclusive right, thereby providing an economic incentive for innovation.

2. Reward Theory

An inventor who creates a useful and legally qualifying invention is given recognition and limited exclusive rights as a reward for intellectual effort and investment.

3. Disclosure Theory

In exchange for patent protection, the inventor must disclose the invention through the patent specification.

This contributes to the spread of scientific and technical knowledge.

After expiry of the patent term, the invention generally becomes available for public use.

Thus, the patent system operates as an exchange:

Disclosure of knowledge in return for limited exclusive rights.

4. Economic Development

Patent protection may encourage:

- Research and development;
- Investment;
- Technology transfer;
- Industrial growth; and
- Technological advancement.

❖ (iii) CRITERIA OF PATENTABILITY: INVENTIVENESS, NON-OBVIOUSNESS AND UTILITY/INDUSTRIAL APPLICATION

For an invention to receive patent protection, it must satisfy the statutory requirements of patentability.

The three central requirements are:

1. Novelty;
2. Inventive step or non-obviousness; and
3. Industrial applicability.

1. Novelty

An invention must be **new**.

It should not have been previously disclosed to the public through:

- Earlier publication;
- Prior use;
- Existing knowledge; or
- Other forms of prior art.

If the invention was already known before the relevant priority date, it generally lacks novelty.

2. Inventive Step and Non-Obviousness

The invention must involve an **inventive step**.

It should not be obvious to a person skilled in the relevant field merely on the basis of existing knowledge.

Thus, a minor or obvious modification of an existing product or process may not satisfy the requirement.

Example

Suppose an existing machine is slightly modified in a manner that any ordinarily skilled person would naturally consider. Such a modification may be considered obvious and may fail to qualify as an inventive step.

The requirement of inventive step prevents patents from being granted for trivial or routine developments.

3. Industrial Application or Utility

The invention must be capable of being made or used in an industry.

The invention must therefore have a practical application.

A purely speculative idea without practical applicability does not ordinarily satisfy this requirement.

Important Case

Bishwanath Prasad Radhey Shyam v. Hindustan Metal Industries (1979)

The Supreme Court discussed the concept of invention and emphasized that a patentable invention must involve more than a mere workshop improvement or an obvious development.

The case remains important for understanding **inventive step and obviousness** in Indian patent law.

❖ (iv) PROCESS FOR GRANT OF PATENT AND REGISTRATION

The process for obtaining a patent broadly includes:

1. Application;
2. Filing of specification;
3. Publication;
4. Request for examination;
5. Examination;

6. Opposition, where applicable; and

7. Grant.

The relevant provisions concerning applications, specifications, publication, examination and opposition are principally found in Chapters III to V of the Act.

1. Application for Patent

Under **Section 6**, an application may be made by:

- The true and first inventor;
- An assignee of the inventor; or
- The legal representative of a deceased person entitled to apply.

The application must comply with the statutory and procedural requirements.

2. Specification

The applicant may initially file:

- A **provisional specification**, or
- A **complete specification**.

A provisional specification is useful where the invention has been developed but further time is required to prepare the complete specification.

A complete specification is required to fully describe the invention and define the scope of protection claimed.

Under Section 10, a complete specification must fully and particularly describe the invention, disclose the best method known to the applicant for performing it, contain claims defining the scope of protection, and include an abstract. Special requirements apply where biological material cannot otherwise be adequately described, including deposit requirements and disclosure of the source and geographical origin where applicable.

3. Publication

A patent application is published according to **Section 11A**, subject to the statutory scheme and applicable exceptions.

Publication is important because it places the application in the public domain and enables interested persons to examine the claimed invention.

4. Request for Examination

Publication alone does not automatically result in grant.

A **request for examination** must be made in accordance with Section 11B and the applicable Rules.

The application is then examined to determine whether it complies with the requirements of the Act.

5. Examination

The Controller refers the application for examination.

The examination considers matters such as:

- Patentability;
- Novelty;
- Inventive step;
- Industrial applicability;
- Sufficiency of disclosure; and

- Compliance with statutory requirements.

The Controller may raise objections, and the applicant may be required to amend or clarify the application.

6. Opposition

Indian patent law provides both:

(a) Pre-grant Opposition

After publication but before grant, **any person** may oppose the grant by making a representation to the Controller.

(b) Post-grant Opposition

After grant, an **interested person** may file opposition within the statutory period.

Grounds include matters such as:

- Wrongful obtaining;
- Lack of novelty;
- Prior publication;
- Prior public knowledge or use;
- Obviousness;
- Non-patentable subject matter;
- Insufficient disclosure;
- Non-disclosure or incorrect disclosure concerning biological material; and
- Anticipation by traditional knowledge.

The Controller may maintain, amend or revoke the patent after following the statutory procedure.

7. Grant of Patent

If the application satisfies the statutory requirements and no successful opposition prevents grant, the patent may be granted under the Act.

The patent has effect throughout India and is subject to the conditions and limitations prescribed by law.

❖ (v) SUBJECT MATTER OF PATENTS

The basic principle is that not every discovery, idea or creation is patentable.

The Patents Act specifically excludes various matters from patentability.

Important Non-Patentable Subject Matter

Under **Section 3**, important exclusions include:

- Frivolous inventions;
- Inventions contrary to well-established natural laws;
- Inventions whose commercial exploitation would be contrary to public order or morality or seriously prejudicial to life, health or the environment;
- Mere discoveries of scientific principles or naturally occurring substances;
- Certain new forms or new uses of known substances;
- Mere admixtures;

- Mere arrangements or rearrangements of known devices;
- Methods of agriculture or horticulture;
- Methods of medical treatment;
- Plants and animals, except microorganisms subject to statutory requirements;
- Mathematical and business methods;
- Computer programs **per se** and algorithms;
- Literary, dramatic, musical and artistic works;
- Methods of performing mental acts or playing games;
- Presentation of information;
- Topography of integrated circuits; and
- Traditional knowledge or mere aggregation or duplication of known properties of traditionally known components.

Inventions relating to **atomic energy** are separately excluded under Section 4.

Section 3(d) and Pharmaceutical Patents

Section 3(d) is particularly important in Indian patent law.

It prevents patent protection for the mere discovery of a new form of a known substance unless the new form results in an enhancement of the known efficacy required by the provision.

The purpose is to prevent unjustified extension of patent monopolies over minor modifications of known substances.

Landmark Case

Novartis AG v. Union of India (2013)

The Supreme Court refused the patent claim relating to the beta crystalline form of Imatinib Mesylate on the facts and legal requirements of the case.

The judgment is a landmark decision concerning **Section 3(d)** and India's approach towards pharmaceutical patentability.

The case is particularly important for the principle that not every new form or modification of a known substance automatically qualifies for patent protection.

❖ (vi) EXPLOITATION OF PATENTS, RENEWAL AND REVOCATION, DEPENDENT PATENTS, SECRET PATENTS AND PATENTS OF ADDITION

Exploitation of Patents

Exploitation means the commercial or practical use of a patented invention.

The patentee may exploit the patent by:

- Manufacturing the patented product;
- Using the patented process;
- Selling the invention;
- Licensing others to use it; or
- Assigning the patent rights.

However, exploitation is subject to statutory restrictions and public-interest safeguards.

Renewal of Patent

A patent continues only for the prescribed statutory term, subject to payment of the required renewal fees.

Failure to comply with renewal requirements may result in the patent lapsing, subject to provisions relating to restoration.

Revocation of Patent

A patent may be revoked on grounds provided under **Section 64** and other relevant provisions.

Important grounds include:

- Wrongful obtaining;
- Lack of novelty;
- Absence of inventive step;
- Non-patentable subject matter;
- Insufficient or unclear disclosure;
- False suggestion or representation;
- Failure to disclose required information;
- Incorrect disclosure relating to biological material; and
- Anticipation by traditional knowledge.

Revocation is an important safeguard because a patent should not continue where it was wrongly granted or does not satisfy statutory requirements.

Dependent or Related Patents

A dependent patent generally concerns an invention that cannot be fully exploited without using another patented invention.

Indian law recognizes the practical issue of related patents and provides for **licensing of related patents** in appropriate circumstances.

The purpose is to prevent patent rights from unnecessarily blocking legitimate technological development.

Secret Patents

Where an invention is relevant to defence or national security, the law may restrict publication or disclosure through secrecy directions.

The objective is to balance the inventor's rights with the security interests of the State.

Patents of Addition

A patent of addition is governed by **Sections 54–56**.

It may be granted for an improvement or modification of an invention already protected by a main patent or for which an application has been made.

Features

- It is connected with the main invention;
- It covers improvement or modification;
- It does not generally require a separate renewal fee in the same manner as an independent patent;
- Its term is generally connected with the main patent.

The statutory provisions specifically deal with patents of addition, their term and validity.

❖ (vii) RIGHTS OF PATENT OWNER, COMPULSORY LICENCES AND GOVERNMENT USE OF PATENTS

Rights of Patent Owner

The principal rights of a patentee are provided under **Section 48**.

In the case of a product patent, the patentee may prevent unauthorized persons from making, using, offering for sale, selling or importing the patented product.

In the case of a process patent, the patentee may prevent unauthorized use of the process and specified commercial dealings relating to products directly obtained through that process.

These rights are subject to other provisions of the Act and statutory exceptions.

Compulsory Licence

A **compulsory licence** is a licence granted under legal authority without requiring the patent holder's voluntary consent, subject to statutory conditions.

It represents an important limitation on the exclusive rights of the patentee.

Under **Section 84**, after the expiration of the prescribed period from the grant of a patent, an interested person may apply for a compulsory licence on grounds including:

1. The reasonable requirements of the public have not been satisfied;
2. The patented invention is not available to the public at a reasonably affordable price; or
3. The patented invention is not worked in the territory of India.

The Controller considers the statutory conditions and may grant a licence on appropriate terms.

Landmark Case: Natco Pharma v. Bayer Corporation

The compulsory licence granted to **Natco Pharma** concerning Bayer's patented medicine **Sorafenib Tosylate** is one of the most important developments in Indian patent law.

The case demonstrated the practical application of compulsory licensing, particularly in relation to:

- Public access;
- Affordability; and
- Working of the patented invention.

It is frequently cited as an example of India's attempt to balance patent rights with public interest.

Special Compulsory Licence

The Act also contains special provisions for compulsory licensing in situations such as:

- National emergency;
- Extreme urgency; and
- Public non-commercial use.

Special provisions also address certain circumstances involving the export of patented pharmaceutical products to countries having insufficient manufacturing capacity.

Government Use of Patents

The Central Government has statutory powers concerning the use of patented inventions for governmental purposes.

The provisions principally contained in **Sections 99–103** address:

- Meaning of government use;
- Government use of inventions;

- Rights of third parties;
- Acquisition of inventions; and
- Reference of disputes to the High Court.

Thus, the public interest and requirements of the Government may, in specified circumstances, limit the exclusive rights of a patentee.

❖ (viii) VIOLATION OF PATENT RIGHTS AND REMEDIES AVAILABLE TO PATENT OWNER

Patent Infringement

Patent infringement occurs when a person, without authorization, performs an act reserved exclusively for the patentee under the Patents Act.

Depending upon whether the patent relates to a product or process, infringement may include unauthorized:

- Making;
- Using;
- Selling;
- Offering for sale;
- Importing; or
- Using the patented process.

Exceptions

Not every use of a patented invention constitutes infringement.

The Patents Act recognizes certain statutory exceptions, including provisions relating to acts that are specifically not considered infringement.

Therefore, infringement must always be determined according to:

1. The scope of the patent claims; and
2. The relevant statutory provisions.

Remedies

Under **Section 108**, a court may grant appropriate relief in a suit for patent infringement.

The principal remedies include:

1. Injunction

The court may restrain the defendant from continuing the infringing activity.

2. Damages

The patent holder may be awarded monetary compensation for the loss caused by infringement.

3. Account of Profits

Instead of damages, the court may direct an account of profits, enabling the patent holder to claim profits made by the infringer, subject to the applicable legal principles.

4. Delivery Up or Destruction

The court may order infringing goods or materials to be delivered up or destroyed, where appropriate.

The Act also contains provisions regarding jurisdiction, burden of proof in certain process patent cases, defences and statutory exceptions.

Important Case

F. Hoffmann-La Roche Ltd. v. Cipla Ltd.

This is an important Indian patent infringement case dealing with pharmaceutical patents and issues relating to:

- Validity of patent;
- Infringement;
- Interpretation of patent claims; and
- Remedies.

It is frequently referred to in the study of modern Indian patent litigation.

❖ (ix) BIOTECHNOLOGICAL INVENTIONS AND PATENTS

Biotechnology involves the use of biological systems, living organisms or biological processes for developing products and processes.

Biotechnological inventions may relate to:

- Microorganisms;
- Genetic material;
- Pharmaceuticals;
- Agricultural technology;
- Industrial processes; and
- Biological products.

Patentability of Biotechnological Inventions

Biotechnological inventions raise complex questions because the subject matter may involve living organisms and naturally occurring biological material.

Under Indian patent law, **mere discovery of a living or non-living thing occurring in nature is not patentable.**

Further, **plants and animals in whole or in part are generally excluded**, except microorganisms, subject to the statutory provisions.

Essentially biological processes for the production or propagation of plants and animals are also excluded.

Therefore, an important distinction exists between:

- Mere discovery of something existing in nature; and
- A qualifying human-made invention satisfying the requirements of patentability.

These statutory exclusions are contained principally in Section 3.

Biological Material and Patent Applications

Where biological material cannot be sufficiently described in the specification and is not publicly available, the patent application may require deposit of the material with an appropriate international depository authority under the **Budapest Treaty** framework.

The complete specification must also satisfy statutory requirements concerning identification and, where applicable, disclosure of the source and geographical origin of biological material.

These requirements are important in preventing inadequate disclosure and ensuring transparency regarding biological resources.

Traditional Knowledge and Biotechnology

Biotechnological research may sometimes rely upon:

- Traditional medicinal knowledge;
- Indigenous knowledge; or
- Biological resources traditionally used by local communities.

Indian patent law therefore recognizes traditional knowledge as relevant to patentability and opposition.

An invention may be challenged where it is anticipated by knowledge available within local or indigenous communities, and traditional knowledge is also included among the exclusions under Section 3.

CONCLUSION

The **Patents Act, 1970** establishes the legal framework for the protection of inventions in India. To obtain a patent, an invention must satisfy the requirements of **novelty, inventive step and industrial applicability**, while also avoiding the statutory exclusions contained in the Act.

The patent system grants exclusive rights to inventors, but those rights are balanced by important safeguards such as **opposition, revocation, compulsory licensing, statutory exceptions and government use**. Indian patent law is therefore based on the principle that innovation should be rewarded, but patent protection must ultimately operate consistently with **public interest, technological development and social welfare**.

UNIT – III

THE TRADE MARKS ACT, 1999

A **Trade Mark** is an important form of Intellectual Property Right. It protects the distinctive identity of goods or services and enables consumers to identify their commercial source.

The law relating to trademarks in India is mainly governed by the **Trade Marks Act, 1999**. The Act provides for:

- Registration of trademarks;
- Protection of registered marks;
- Rights of trademark owners;
- Protection against infringement;
- Passing off;
- Protection of well-known marks;
- Registration of trade names in appropriate circumstances; and
- Other matters relating to trademarks and commercial identity.

The main objective of trademark law is not only to protect the owner of the mark but also to protect consumers from **confusion, deception and misrepresentation**.

❖ (i) HISTORY AND SCOPE OF TRADE MARKS

Historical Development of Trademark Law

The concept of trademarks developed with the growth of trade and commerce. Traders used distinctive symbols, names and marks to identify their goods and distinguish them from the goods of other traders.

In India, trademark law developed gradually during the colonial period.

Important legislation included:

1. Trade Marks Act, 1940

This was the first comprehensive legislation relating to trademarks in India.

2. Trade and Merchandise Marks Act, 1958

The 1940 Act was replaced by the **Trade and Merchandise Marks Act, 1958**.

This Act provided a more developed legal framework relating to:

- Registration;
- Infringement;
- Passing off; and
- Protection of trademarks.

3. Trade Marks Act, 1999

The **Trade Marks Act, 1999** replaced the 1958 Act.

The 1999 Act modernized Indian trademark law and brought it more closely in line with international developments and India's obligations under the **TRIPS Agreement**.

The Act also recognized several modern developments, including:

- Registration of service marks;
- Protection of well-known trademarks;
- Collective marks;
- Certification marks; and
- Stronger protection against infringement.

Scope of the Trade Marks Act, 1999

The scope of trademark law is wide.

It covers marks used in relation to both:

1. **Goods**, and
2. **Services**.

A trademark may consist of:

- Words;
- Names;
- Letters;
- Numerals;
- Devices;
- Labels;
- Shapes of goods;
- Packaging; and

- Combinations of colours,

provided that the mark satisfies the requirements of the law.

The Act also deals with:

- Registration;
- Assignment;
- Transmission;
- Licensing;
- Infringement;
- Passing off;
- Well-known trademarks;
- Collective marks; and
- Certification marks.

❖ (ii) DEFINITION AND FUNCTIONS OF A TRADE MARK AND TRADE NAMES

Under **Section 2(1)(zb)** of the Trade Marks Act, 1999, a trade mark broadly means a mark capable of being represented graphically and capable of distinguishing the goods or services of one person from those of others.

A trademark may include:

- Shape of goods;
- Packaging; and
- Combination of colours.

The most important characteristic of a trademark is **distinctiveness**.

The mark must enable consumers to distinguish the goods or services of one trader from those of another.

Meaning of Mark

Under the Act, a “mark” may include:

- Device;
- Brand;
- Heading;
- Label;
- Ticket;
- Name;
- Signature;
- Word;
- Letter;
- Numeral;
- Shape of goods;
- Packaging; and

- Combination of colours.

FUNCTIONS OF A TRADE MARK

A trademark performs several important functions.

1. Source or Origin Function

A trademark identifies the commercial origin of goods or services.

For example, when consumers see a particular trademark, they associate it with a particular source or business.

2. Distinguishing Function

A trademark distinguishes the goods or services of one trader from those of competitors.

This is the basic function of a trademark.

3. Quality Assurance Function

A trademark often represents a certain level of quality in the minds of consumers.

Consumers may repeatedly purchase goods bearing a particular mark because they trust the quality associated with it.

4. Advertising Function

A trademark is an important advertising tool.

A famous trademark may itself attract consumers and create commercial value.

Thus, trademarks can become valuable business assets.

5. Protection of Goodwill

Over time, a business may develop reputation and goodwill associated with its trademark.

Trademark law protects this goodwill from unauthorized exploitation by others.

TRADE NAMES

A **trade name** is the name under which a person or business carries on commercial activities.

A trade name identifies the business itself, whereas a trademark generally identifies particular goods or services.

Example

A company may carry on business under a particular company or trade name while selling different products under separate trademarks.

However, the same word or name may sometimes function both as:

- A trade name; and
- A trademark.

Protection of a trade name may arise under trademark law, passing off law and other applicable laws.

❖ (iii) CRITERIA FOR REGISTRATION OF A TRADE MARK AND RIGHTS OF TRADE MARK OWNER

Registration of Trademark

Registration gives the proprietor important statutory rights over the trademark.

However, not every mark can be registered.

The mark must satisfy the legal requirements prescribed by the Trade Marks Act.

Essential Criteria for Registration

1. Distinctiveness

The trademark must be capable of distinguishing the goods or services of one person from those of others.

A highly distinctive or invented word is generally easier to protect than a common or descriptive word.

2. The Mark Should Not Be Deceptive

A mark should not be registered if its use is likely to deceive or cause confusion.

For example, a mark falsely suggesting a particular origin, quality or connection may be refused registration.

3. It Should Not Be Identical or Deceptively Similar to an Earlier Mark

Registration may be refused where the proposed trademark is identical or deceptively similar to an earlier trademark and its use is likely to create confusion or association among consumers.

4. Generic Marks Are Generally Not Registrable

A generic expression refers to the name of the goods or services themselves.

No trader should normally obtain exclusive rights over a common generic term.

5. Descriptive Marks

A purely descriptive mark may face difficulty in registration unless it has acquired distinctiveness through extensive use.

6. Prohibited or Objectionable Marks

Registration may also be refused in cases involving marks that are:

- Deceptive;
- Contrary to law;
- Obscene or scandalous;
- Likely to hurt religious susceptibilities;
- Prohibited under other legislation; or
- Otherwise subject to statutory restrictions.

Absolute and Relative Grounds for Refusal

The grounds for refusal of registration are broadly divided into:

A. Absolute Grounds – Section 9

These relate mainly to the inherent nature of the mark, such as lack of distinctiveness, descriptiveness or generic character.

B. Relative Grounds – Section 11

These relate mainly to conflict with earlier trademarks and the likelihood of confusion or association.

Rights of the Trade Mark Owner

The registered proprietor receives important rights under the Act.

1. Exclusive Right to Use

Under **Section 28**, registration gives the proprietor the exclusive right to use the trademark in relation to the goods or services for which it is registered, subject to the provisions of the Act.

2. Right to Sue for Infringement

The registered proprietor can bring legal proceedings against a person who infringes the registered trademark.

3. Right to Assign or License

A trademark may generally be:

- Assigned;
- Transmitted; or
- Licensed,

subject to the requirements of law.

4. Right to Protect Goodwill

The owner can take legal action against unauthorized use that damages the reputation and goodwill associated with the mark.

Important Point

Registration provides a statutory remedy for **infringement**.

However, even an unregistered trademark may be protected through an action for **passing off**, provided the necessary legal requirements are satisfied.

❖ (iv) INFRINGEMENT OF TRADE MARKS AND REMEDIES AVAILABLE TO TRADE MARK OWNER

Meaning of Trademark Infringement

Trademark infringement occurs when a person uses a mark identical or deceptively similar to a registered trademark without authorization in circumstances covered by the Act.

The main purpose of infringement law is to prevent:

- Consumer confusion;
- Unauthorized commercial exploitation;
- Dilution of the mark; and
- Damage to the proprietor's rights.

When Does Infringement Occur?

Under **Section 29**, infringement may occur where an unauthorized person uses:

- An identical mark in relation to identical goods or services;
- An identical or similar mark in relation to similar goods or services where there is likelihood of confusion;
- A mark taking unfair advantage of, or being detrimental to, the distinctive character or reputation of a well-known or reputed mark, subject to statutory requirements.

The question of infringement depends upon factors such as:

- Similarity of marks;
- Similarity of goods or services;
- Nature of consumers;
- Mode of purchasing goods;
- Likelihood of confusion; and
- Overall impression created by the marks.

Types of Remedies

1. Injunction

The court may issue an injunction preventing the defendant from continuing the infringing use.

Types

- Temporary or interim injunction;
- Permanent injunction.

An injunction is often the most important remedy in trademark cases.

2. Damages

The trademark owner may claim compensation for losses suffered because of infringement.

3. Account of Profits

Instead of damages, the plaintiff may seek an account of profits made by the infringer.

4. Delivery Up and Destruction

The court may order delivery up or destruction of infringing labels, goods or materials.

5. Criminal Remedies

The Trade Marks Act also contains provisions relating to offences and penalties for certain acts such as:

- Falsifying trademarks;
- Selling goods bearing false trademarks; and
- Other prohibited activities.

Important Case Law

Cadila Health Care Ltd. v. Cadila Pharmaceuticals Ltd. (2001)

This is a leading Supreme Court decision relating to deceptive similarity.

The dispute involved the marks **Falcigo** and **Falcitab**.

The Supreme Court laid down important principles for determining deceptive similarity, particularly in cases involving medicinal products.

The Court emphasized that courts should consider factors such as:

- Nature of the marks;
- Degree of resemblance;
- Nature of goods;
- Similarity in character and performance;
- Class of purchasers; and
- Surrounding circumstances.

Importance

This case is extremely important for questions relating to **deceptive similarity, infringement and passing off**.

❖ (v) INTELLECTUAL PROPERTY APPELLATE BOARD (IPAB)

The **Intellectual Property Appellate Board (IPAB)** was established to deal with appeals and other matters relating to intellectual property rights.

It exercised jurisdiction in relation to matters assigned to it under intellectual property legislation, including trademark and patent-related matters.

The purpose was to provide a specialized forum for intellectual property disputes.

Functions of IPAB

The IPAB dealt with matters such as:

- Appeals against certain decisions of the Registrar of Trade Marks;
- Rectification and cancellation matters;
- Certain patent appeals and revocation proceedings; and
- Other matters assigned under intellectual property laws.

Abolition of IPAB

The IPAB was abolished in **2021** through the **Tribunals Reforms Act, 2021**.

After its abolition, jurisdiction over relevant matters was transferred to appropriate courts and authorities, including the **High Courts**, according to the statutory scheme.

Examination Point

IPAB – Established for specialized intellectual property disputes – Abolished in 2021.

This is an important point because older books may still describe the IPAB as an existing appellate authority.

❖ (vi) WELL-KNOWN MARKS AND THEIR PROTECTION

Meaning of Well-Known Trade Mark

A **well-known trademark** is a mark that has become widely known among a substantial segment of the public and possesses significant reputation.

Such marks receive wider protection because unauthorized use may:

- Create an unfair association;
- Take unfair advantage of the reputation of the mark;
- Dilute its distinctive character; or
- Damage its reputation.

Protection Under the Trade Marks Act

Section 11 provides special protection to well-known marks.

While determining whether a trademark is well known, relevant authorities may consider factors such as:

- Knowledge or recognition of the mark;
- Duration and extent of use;
- Promotion and advertising;
- Registration and enforcement;
- Value associated with the mark; and
- Recognition among relevant sections of the public.

Cross-Class Protection

Ordinary trademarks generally receive protection primarily in relation to the goods or services for which they are registered.

However, a well-known trademark may receive protection even in relation to **dissimilar goods or services** where unauthorized use takes unfair advantage of or damages the distinctive character or reputation of the well-known mark.

Important Case

Daimler Benz Aktiengesellschaft v. Hybo Hindustan

The use of the well-known **BENZ** mark by another party for unrelated goods was restrained.

The case is important for the principle that a mark having exceptional reputation should not be freely appropriated for unrelated goods.

❖ (vii) PASSING OFF

Meaning of Passing Off

Passing off is a common law remedy designed to protect the goodwill of a business against misrepresentation.

The basic principle is:

No person should represent his goods or business as being the goods or business of another person.

Passing off is especially important because an action for passing off may be available even where the trademark is **not registered**.

Essential Elements of Passing Off

The three essential elements are generally described as:

1. Goodwill or Reputation

The plaintiff must establish goodwill or reputation in the goods, services or business.

2. Misrepresentation

The defendant must have made a representation likely to lead consumers to believe that the defendant's goods or services are connected with the plaintiff.

The misrepresentation may be intentional or unintentional.

3. Damage

The plaintiff must establish actual or likely damage to goodwill or business.

Important Case

Reckitt & Colman Products Ltd. v. Borden Inc.

This case is famous for the “**Classical Trinity**” of passing off:

1. Goodwill;
2. Misrepresentation; and
3. Damage.

Passing Off and Infringement: Difference

Basis	Infringement	Passing Off
Nature	Statutory remedy	Common law remedy
Registration	Generally requires a registered trademark	Registration is not necessary

Basis	Infringement	Passing Off
Main Question	Unauthorized use of registered mark	Misrepresentation causing damage to goodwill
Rights Protected	Statutory rights	Goodwill and reputation

Important Indian Case

N.R. Dongre v. Whirlpool Corporation

This case recognized the importance of reputation and goodwill extending beyond national boundaries.

It is an important case relating to:

- Passing off;
- Trans-border reputation; and
- Protection of internationally known trademarks.

❖ (viii) DOMAIN NAMES AND THEIR ADMINISTRATION

A **domain name** is the address through which an Internet user can locate a particular website.

For example, in a website address, the distinctive domain name may perform a function similar to that of a trademark.

A domain name can therefore possess significant commercial value and goodwill.

Domain Names as Trademarks

A domain name is not merely an Internet address when it identifies the commercial source of goods or services.

Courts have recognized that domain names may perform the same functions as trademarks, particularly by:

- Identifying the source of goods or services;
- Creating consumer recognition; and
- Representing commercial goodwill.

Therefore, unauthorized registration or use of a confusingly similar domain name may result in legal disputes.

Domain Name Administration

The global Domain Name System operates through a hierarchical system.

Different organizations and authorities participate in the administration of:

- Generic Top-Level Domains (gTLDs), such as **.com**, **.org** and **.net**;
- Country Code Top-Level Domains (ccTLDs), such as **.in**.

In India, the **.in** domain space is administered through the relevant Indian domain name registry system.

International domain name administration involves the **Internet Corporation for Assigned Names and Numbers (ICANN)**, which plays an important coordinating role in the global domain name system.

Cybersquatting

Cybersquatting generally refers to the registration of a domain name identical or confusingly similar to another person's trademark, often with the intention of:

- Selling the domain name;
- Exploiting the reputation of the trademark; or

- Preventing the genuine trademark owner from using it.

Example:

If a person registers a famous company's name as a domain name without legitimate interest and attempts to sell it to the company at a high price, it may amount to cybersquatting.

Domain Name Disputes

Domain name disputes may be resolved through mechanisms such as:

- Court proceedings;
- Trademark infringement actions;
- Passing off actions; and
- Alternative domain name dispute resolution procedures.

Internationally, domain name disputes relating to certain domains may be resolved through the **Uniform Domain Name Dispute Resolution Policy (UDRP)**.

For **.in** domain names, disputes may be addressed through the **Indian Domain Name Dispute Resolution Policy (INDRP)**.

Important Case Law on Domain Names

Satyam Infoway Ltd. v. Sifynet Solutions Pvt. Ltd. (2004)

This is one of the leading Indian cases on domain names.

The Supreme Court recognized that a domain name can perform the same function as a trademark and is entitled to protection against passing off.

The dispute involved domain names associated with the name **Sify**.

Importance

The case established that:

- Domain names can have trademark-like value;
- Domain names can represent business goodwill; and
- Passing off principles can apply to domain name disputes.

Yahoo! Inc. v. Akash Arora (1999)

This important case involved the domain name **YahoolIndia.com**.

The Delhi High Court granted protection to the plaintiff against the use of a deceptively similar domain name.

The case is considered an important Indian authority on:

- Domain name protection;
- Internet identity; and
- Passing off in cyberspace.

CONCLUSION

The **Trade Marks Act, 1999** provides a comprehensive system for protecting trademarks and commercial identity in India. It protects registered trademarks through statutory remedies for infringement while preserving the common law remedy of **passing off** for the protection of goodwill and reputation.

Modern trademark law has expanded beyond traditional names and symbols to include **service marks, well-known marks and domain names**. The law therefore plays an important role in protecting businesses, maintaining fair competition and preventing consumers from being misled or deceived.

UNIT – IV

INDUSTRIAL DESIGNS ACT, 2000

The **Industrial Designs Act, 2000**, provides legal protection to the **visual and aesthetic appearance of an article**. It is an important branch of Intellectual Property Rights because, in the modern commercial world, the appearance and design of a product can have significant economic value.

A consumer may be attracted towards a product not only because of its quality or utility but also because of its:

- Shape;
- Pattern;
- Configuration;
- Ornamentation;
- Colour combination; or
- Overall visual appearance.

The Designs Act protects such visual features when they satisfy the requirements of registration.

Important Point

The Designs Act protects the **appearance of an article** and not its functional or technical features.

For example, if a newly designed bottle has a unique ornamental shape, its **visual appearance** may be protected under design law. However, if the shape exists only because it performs a technical function, design protection may not be available.

❖ (i) BRIEF HISTORY OF INDUSTRIAL DESIGNS LAW

Historical Background

Protection of industrial designs developed with the growth of industrialization and mass production.

As industries began manufacturing large quantities of goods, manufacturers realized that the appearance of products could create commercial value and distinguish one product from another.

Therefore, legal protection became necessary to prevent competitors from copying attractive and commercially valuable designs.

Development of Design Law in India

The history of industrial design law in India can broadly be understood through the following stages:

1. Designs Act, 1911

Earlier, industrial designs in India were governed through the **Patents and Designs Act, 1911**.

Under the earlier system, patent and design protection were dealt with under the same legislative framework.

2. Need for Separate Legislation

With technological and industrial development, the law relating to patents and industrial designs became more complex.

Patents protect **technical inventions**, whereas industrial designs protect the **aesthetic appearance of articles**.

Therefore, separate legislation became necessary.

3. Designs Act, 2000

The **Designs Act, 2000** replaced the earlier law relating to industrial designs.

The Act modernized Indian design law and was enacted in the context of:

- Industrial development;
- Growth of manufacturing;
- International trade;
- Modern intellectual property standards; and
- India's obligations under international intellectual property arrangements.

The Designs Act, 2000 seeks to encourage creativity in industrial products by granting protection to registered designs for a limited period.

International Development

The protection of industrial designs is also recognized internationally as an important area of intellectual property.

Industrial design protection is connected with international instruments and systems dealing with intellectual property protection.

The modern approach recognizes that the appearance of products may have substantial commercial value and therefore deserves legal protection against unauthorized copying.

❖ (ii) INDUSTRIAL DESIGNS AS INTELLECTUAL PROPERTY RIGHTS

An industrial design is an **intangible intellectual creation** relating to the appearance of an article.

It differs from ordinary property because the subject matter of protection is not the physical object itself but the **visual design applied to that object**.

For example, a manufacturer may own thousands of physically identical bottles, but the intellectual property right relates to the particular design or appearance of the bottle.

Industrial Design as Incorporeal Property

Industrial designs are generally considered a form of **incorporeal or intangible property**.

The design right can have commercial value because it may:

- Attract consumers;
- Increase market value;
- Create product identity;
- Give a competitive advantage; and
- Prevent competitors from copying the design.

Purpose of Industrial Design Protection

The purpose of design protection is to encourage manufacturers and designers to invest in:

- Creative product development;
- Aesthetic improvements;
- Innovative appearances; and
- Attractive product presentation.

Without protection, a competitor could simply copy a successful design without investing time, money or creative effort.

Thus, design law prevents unfair commercial copying and promotes industrial creativity.

DIFFERENCE BETWEEN PATENT, DESIGN AND TRADEMARK

Basis	Patent	Industrial Design	Trademark
Protects	Technical invention	Visual appearance	Commercial identity
Main Requirement	Novelty + inventive step + industrial application	New/original visual features	Distinctiveness
Subject Matter	Product or process	Shape, configuration, pattern, ornament etc.	Name, logo, symbol, mark etc.
Purpose	Protect technological innovation	Protect aesthetic appearance	Distinguish goods/services
Example	New machine	Unique shape of product	Brand name

Easy Formula

Patent = How it works

Design = How it looks

Trademark = Whose product it is

❖ (iii) INDUSTRIAL DESIGNS: DEFINITION AND CRITERIA OF REGISTRATION

Under the **Designs Act, 2000**, a “design” broadly refers to features of:

- Shape;
- Configuration;
- Pattern;
- Ornament; or
- Composition of lines or colours,

which are applied to an article.

The features must appeal to and be judged **solely by the eye**.

This is one of the most important principles of industrial design law.

Essential Features of a Design

For registration, a design must generally satisfy the following requirements.

1. The Design Must Be New or Original

The design should be new or original.

A design that has already been publicly disclosed or is already known may not qualify for registration.

Novelty is therefore an essential requirement.

2. It Must Relate to an Article

The design must be applied to an article.

An abstract artistic idea by itself is not necessarily protected as an industrial design.

The law protects the visual appearance of the design when applied to a relevant article.

3. It Must Appeal to the Eye

The design must be capable of being judged solely by the eye.

This means that the aesthetic appearance of the article is important.

4. It Must Not Be Purely Functional

A feature that exists only because of its technical or functional purpose is generally not protected as an industrial design.

Example

If a machine component has a particular shape solely because that shape is necessary for the machine to operate, the feature may not qualify for design protection.

However, where a product has an aesthetic or ornamental feature that is visually distinguishable, it may qualify for protection.

5. It Should Not Have Been Previously Published

The design should not have been published or disclosed to the public before the relevant date in a manner that destroys its novelty.

Therefore, premature public disclosure may affect the possibility of registration.

6. It Should Not Be Contrary to Public Order or Morality

A design may not be registered if it is contrary to public order or morality.

WHAT IS NOT A DESIGN?

Certain matters are excluded from the definition of design.

These include, broadly:

1. Mode or Principle of Construction

A method or principle by which an article is constructed is not protected as a design.

2. Mechanical Devices

A purely mechanical device is outside the scope of design protection.

3. Trademark

A trademark cannot ordinarily be protected as an industrial design merely because it appears on an article.

4. Property Mark

Property marks are separately dealt with under other laws.

5. Artistic Work

An artistic work in itself is generally governed by copyright law rather than design law, although special legal questions may arise where artistic works are industrially applied.

➤ IMPORTANT CASE LAW

Bharat Glass Tube Ltd. v. Gopal Glass Works Ltd. (2008)

This is an important Supreme Court case relating to industrial designs.

The dispute concerned the registration and alleged piracy of a design.

The Supreme Court discussed the principles relating to:

- Novelty;

- Originality;
- Prior publication; and
- Validity of design registration.

Importance

The case is frequently cited for understanding the requirement that a design must be new or original and should not have been previously published in a manner that destroys its novelty.

❖ (iv) ACQUISITION AND EXPLOITATION OF DESIGN RIGHTS

Acquisition of Design Rights

The primary method of acquiring statutory protection under the Designs Act is through **registration**.

The applicant must submit an application to the appropriate authority in the prescribed manner.

The application generally includes:

- Details of the applicant;
- Identification of the article;
- Representation of the design; and
- Other prescribed requirements.

Registration of Design

The application is examined to determine whether the design satisfies the legal requirements.

The authority may consider questions such as:

- Whether the design is new or original;
- Whether it has been previously published;
- Whether it falls within the definition of design;
- Whether it is functional rather than aesthetic; and
- Whether any statutory ground prevents registration.

If the application satisfies the legal requirements, the design may be registered.

Term of Design Protection

The registered proprietor receives protection for a limited period.

Under the Designs Act, 2000, the initial period of registration is:

10 Years

This may be extended by a further period of:

5 Years

Thus, the maximum period of protection is generally:

10 + 5 = 15 Years

After the expiry of the statutory period, the design generally enters the public domain.

Ownership of Design

The person entitled to apply for registration may include the person claiming to be the proprietor of the design.

Questions of ownership may arise where the design is created by:

- An employee;
- A designer working under a contract;
- A company;
- Partners; or
- Multiple persons jointly.

Therefore, agreements relating to ownership of design rights are commercially important.

Assignment and Transmission

Design rights may generally be transferred through:

1. Assignment

The proprietor transfers the ownership of the design right to another person.

2. Transmission

Rights may pass by operation of law, succession or other legally recognized methods.

Proper documentation and compliance with statutory requirements are important in relation to such transfers.

Licensing and Commercial Exploitation

A registered proprietor may commercially exploit a design by:

- Manufacturing products;
- Selling products;
- Authorizing others to manufacture;
- Granting licences;
- Assigning the design right; or
- Entering into commercial agreements.

Design rights can therefore become valuable business assets.

Importance of Registration

Registration provides evidence and statutory recognition of the proprietor's design rights.

It also enables the proprietor to take action against the unauthorized application or imitation of the registered design.

However, registration does not mean that every design is permanently protected. The protection is:

- Territorial;
- Limited in duration; and
- Subject to statutory conditions.

❖ (v) INFRINGEMENT OF DESIGN RIGHTS: DEFENCES AND REMEDIES

Meaning of Infringement or Piracy of Design

Under the Designs Act, unauthorized copying of a registered design is generally referred to as **piracy of a registered design**.

A person may violate design rights by:

- Applying the registered design to an article without permission;
- Applying an obvious or fraudulent imitation of the registered design; or
- Importing or commercially dealing in articles bearing such unauthorized design.

The purpose of the law is to prevent competitors from unfairly copying the protected visual appearance of a product.

Test of Infringement

The important question is whether the defendant's design is:

- Identical to the registered design; or
- An obvious or fraudulent imitation.

The comparison is generally made by considering the **overall visual impression** produced by the designs.

The court does not merely examine individual minor differences. It considers whether, from the viewpoint of the eye, the competing article creates substantially the same visual impression.

➤ IMPORTANT CASE

Amar Nath Sehgal v. Union of India

Although primarily known as an important copyright case, it is relevant to the broader study of intellectual property and the protection of creative works.

For examination purposes, the main industrial design case should be **Bharat Glass Tube Ltd. v. Gopal Glass Works Ltd.**

DEFENCES AVAILABLE IN DESIGN INFRINGEMENT CASES

A defendant may raise several defences.

1. Invalidity of Registration

The defendant may challenge the validity of the registered design.

The argument may be that the design:

- Was not new;
- Was not original;
- Had already been published;
- Was functional rather than aesthetic; or
- Was wrongly registered.

2. Prior Publication

If the defendant proves that the design was already publicly known or published before the relevant date, the registration may be challenged.

3. No Substantial Similarity

The defendant may argue that the allegedly infringing article does not create the same overall visual impression.

Minor similarities may not necessarily amount to piracy.

4. Functional Feature

A defence may be raised that the disputed feature is primarily functional or mechanical and therefore should not receive design protection.

5. Statutory Defences

The defendant may also rely upon other statutory provisions and grounds available under the Designs Act.

REMEDIES AVAILABLE TO DESIGN OWNER

When piracy of a registered design is established, the proprietor may seek legal remedies.

1. Damages or Monetary Relief

The owner may claim monetary compensation as provided by law.

2. Injunction

The court may restrain the defendant from continuing to apply or commercially use the infringing design.

An injunction may be:

- Temporary/interim; or
- Permanent.

3. Other Statutory Relief

The Designs Act provides specific remedies and procedures in cases of piracy.

The exact relief depends upon:

- Nature of infringement;
- Loss suffered;
- Conduct of the defendant; and
- Relevant statutory provisions.

DIFFERENCE BETWEEN DESIGN INFRINGEMENT AND PASSING OFF

Design Piracy	Passing Off
Based mainly on registered design rights	Based on goodwill and misrepresentation
Concerned with unauthorized copying of registered design	Concerned with misrepresentation regarding commercial origin
Statutory remedy	Common law remedy
Focus on visual design	Focus on goodwill and consumer confusion

CONCLUSION

The **Industrial Designs Act, 2000** protects the aesthetic and visual features of industrial articles. Its purpose is to encourage creativity and investment in attractive product designs while preventing competitors from unfairly copying registered designs.

For a design to receive protection, it must generally be **new or original**, related to an article and capable of being judged **solely by the eye**. Features that are purely functional or mechanical are generally outside the scope of design protection.

The Act provides a limited period of protection and gives the registered proprietor the right to take action against the **piracy or unauthorized imitation of the registered design**. Thus, industrial design law plays an important role in protecting creativity, promoting fair competition and encouraging innovation in the manufacturing and commercial sectors.

~Abhishek Chaudhary